

FILED BY: ONEMAIN FINANCIAL GROUP, LLC

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was the same as that listed in the Complaint. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed on the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$9,856.12, plus costs associated with any procedure to have the judgment enforced, less any credits for payments received.

The Defendant made payments of \$645.

Costs include \$365 for filing fees, and \$1,141.37, for attorney fees. A detailed description of these costs was included in Plaintiff's Declaration, filed with this Motion.

Disposition

Plaintiff's Motion is **granted**. Judgment will be entered in the amount of \$10,717.49.

Plaintiff to file order on Motion, as well as submit Judgment.

8. 9:00 AM CASE NUMBER: L24-11084

CASE NAME: WELLS FARGO BANK, N.A. VS. ZENAIDA SMITH

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

On 11/25/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 9/15/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 9/15/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as sole cause of action, based on the allegation that Defendant became indebted in the amount of \$14,138.01, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered 11/25/25 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$14,138.01.

Plaintiff also filed a memo of costs and attorney fees, in addition to a declaration of attorney fees, all totaling \$1,375.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is **granted**, including the request for costs and fees.
2. Plaintiff shall prepare and submit the order.

3. Court Trial on 7/15/26 will be **vacated**.

9. 9:00 AM CASE NUMBER: L25-01908
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. VERNELL MCCALL
HEARING IN RE: MTC RESPONSES TO REQ. FOR ADMISSIONS, INTERROGATORIES, AND REQ. FOR
PROD OF DOCS

FILED BY:

***TENTATIVE RULING**

Background

Defendant has filed a Motion To Compel various requests for discovery.

The Motion is unopposed, yet there is no proof that Defendant has provided any notice to Plaintiff.

Disposition

This Motion will be **continued** to 7/14/26, 9 a.m.

Defendant to serve Plaintiff with notice of Motion and date of Motion.

Defendant shall prepare and submit the Order.

10. 9:00 AM CASE NUMBER: L25-03167
CASE NAME: WELLS FARGO BANK, NA VS. CAROL CERVANTES
*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON THE PLEADINGS FILED BY PLN ON
1/28/26

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

On 10/28/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 7/25/25, except for number 8, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted,